NewsBank inc.

Charter school reform deal will address several, but not all, recent charter controversies

August 30, 2019 | San Diego Union-Tribune, The: Web Edition Articles (CA)
Author: Kristen Taketa | Section: Education | 1174 Words
OpenURL Link

A landmark agreement on charter school reform legislation reached in Sacramento Wednesday would ban new non-classroom-based charter schools for two years, require charter schools to use credentialed teachers and allow districts to deny charters to schools that would negatively affect their own schools.

Test scores would also no longer be the most important factor in deciding whether a charter school should close, and charter schools would be graded on other factors, the way district schools are.

The reform deal reached by the governor, legislators and charter school advocates still leaves some unresolved issues related to recent charter school controversies in San Diego County, including the A3 charter school scandal that resulted in 11 criminal indictments, experts say.

The new Assembly Bill 1505, introduced by Assembly Education Committee Chair Patrick O'Donnell, would place a two-year moratorium, starting Jan. 1, on any new, non-classroom-based charter schools, which include virtual schools and home charter schools. The bill still needs to be passed in the legislature and signed by the governor before becoming law.

"I think it's an important pause because, just looking at the media articles over the last few months, they are tending to be all towards this specific type of program, the online virtual program," said Deidre Walsh, charter school director for San Diego Unified School District, which is one of California's largest charter school authorizers.

Charter schools are public schools that operate independently of school districts. All charter schools must be authorized by a school board to operate, and most are authorized by district school boards.

Several recent cases in San Diego have raised questions about the operations of some non-classroom-based charter schools, such as the indictment of leaders of the charter management corporation A3 Education, court orders to close some Learn4Life charter schools and public criticisms of the Inspire home charter network.

Critics say it is often harder for districts to oversee non-classroom-based charters than brick-and-mortar charter schools, because non-classroom-based charters can enroll students from all over the state and it's harder to track their activities.

"The problem is, when you have online charters, you don't know who is in your area that has gone to them, because they're online," said Larry Perondi, interim superintendent of the Dehesa School District, which has authorized mostly non-classroom-based charter schools.

Advocates for non-classroom-based charters stress that the actions of a few "bad actor" schools should not be used to punish all non-classroom-based schools.

Dehesa has drawn attention recently because it had authorized schools that were involved in essentially all of San Diego's recent charter school controversies: the A3 indictment, the Learn4Life court orders and the Inspire home charter network.

"This is the right time for the legislature and the education community, both the charter and public schools, to step back and take a deeper view of their practices," said Perondi, who was hired in June and is charged with helping Dehesa reform its charter oversight practices.

Dehesa's superintendent, Nancy Hauer, was indicted in the A3 case and has pleaded not guilty. She remains on paid administrative leave.

The new Assembly Bill 1505 would also let school districts consider how a proposed charter school would impact them financially and to reject charter schools if they offer academic programs already offered by the district.

Those proposed changes would not affect current charter schools, nor would they affect current schools that petition to get renewed in the future, Walsh said.

The bill would only affect current charter schools if they petition to expand to other grade levels or into other school sites, said Walsh, who along with San Diego Superintendent Cindy Marten contributed to a statewide task force that recommended several of the reforms.

"By statute, there's only six narrow reasons you can deny a charter petition for," Walsh said. "This potentially expands that quite a bit, not to just consider the charter school being proposed — which is what we looked at in the past — but the whole landscape of a community or a neighborhood."

To the benefit of several charter schools, school districts would also have to consider charter performance data besides test scores, including the state's school quality ratings.

Low test scores led to the demise of San Diego's Thrive charter schools, whose leaders argued that the test scores obscured progress they had made with students who came from district schools already academically behind.

Assembly Bill 1505 would also require all charter school teachers to have the appropriate teaching credential for their subject matter. Currently, charter school teachers don't have to have a credential if they don't teach a core subject.

Under the bill, all charter school teachers would also have to have a state background check. Currently charter school teachers are allowed to get "local" background checks that are not monitored by the state.

The California Charter School Association, which led opposition to Assembly Bill 1505 for months, now says it is neutral on it.

"Far too many of our most vulnerable students have been under-served by our current public school system, which is exactly why we've engaged in thoughtful conversations and shown a willingness to compromise on this important legislation," said Myrna Castrejón, president and CEO of the charter association, in a statement.

The association helped win some concessions for charter advocates.

Charter schools would keep their right to be authorized by county school boards if school districts deny them, and currently employed charter school teachers would get a five-year grace period to secure required credentials.

Assembly Bill 1505 does not address how to ensure quality charter school oversight by school boards, some experts say.

Recent court cases have shown how a few charter schools can engage in questionable practices by taking advantage of lax oversight by some school districts, especially small school districts, which profit from oversight fees they collect from charter schools they authorize, critics have said.

"I know we've had a lot of conversations at the state level about the need to have consistent authorizer practices across the state," Walsh said.

"I don't know that [Assembly Bill] 1505 was the place for that, but I would expect that that's coming at some point, because there has been a lot of conversation about that," she said. "The recent articles and kind of the bad actors

that we have seen publicly out there, I think, are really helping to drive those types of reforms."

The fate of another controversial piece of charter legislation, Assembly Bill 1507, is still up in the air. That bill would cancel charter schools' ability to open locations outside the school districts that authorize them.

Critics say that causes accountability issues, because the authorizing school districts have less incentive to ensure those schools are operating properly if the charter's students are not their own.

The California Charter Schools Association said it is working with the author of Assembly Bill 1507 on a potential compromise.

Assembly Bills 1505 and 1507 are in the Senate Appropriations Committee.

© 2019 The San Diego Union-Tribune, LLC | All Rights Reserved.

- **Citation (apa Style)**
  Taketa, K. (2019, August 30). Charter school reform deal will address several, but not all, recent charter controversies*San Diego Union-Tribune, The: Web Edition Articles (CA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/175A70905782D838.